

Court No. - 2

Case :- WRIT - C No. - 47760 of 2011

Petitioner :- M/S Avadh Alloys (Pvt.) Ltd.

Respondent :- U.P. Power Corporation Ltd. And Others

Petitioner Counsel :- B.C. Rai

Respondent Counsel :- Pankaj Kumar Shukla

Hon'ble Ashok Bhushan,J.

Hon'ble Bharati Sapru,J.

Heard Shri K.C. Lohati assisted by Shri B.C. Rai learned counsel for the petitioner and Shri Shashi Nandan assisted by Shri Pankaj Kumar Shukla, learned counsel for the respondents no. 1,2 and 4.

This writ petition has been filed by the petitioner praying for a writ of certiorari calling for the records of the case and setting aside/quashing the order of final assessment dated 4.8.2011 (Annexure No. 17 to the writ petition).

Learned counsel for the respondents has raised a preliminary objection that under section 127 of the Electricity Act, 2003 the petitioner has statutory remedy of filing an appeal. There being remedy of appeal the writ petition can not be entertained.

The petitioner challenging the impugned order pressed various submissions and submitted that the case of the petitioner was different as compared to other consumers against whom action was taken on the same day.

He further submits that this Court on 3.9.2010 in writ petition no. 53446 of 2010 filed by the petitioner permitted the petitioners to file reply alongwith the relevant documents. He submitted that the petitioner had asked for various documents from the respondents. which was not provided to them which prejudiced their case in submitting the reply. It is further submitted that the respondents ought to have dropped the entire proceedings in view of provisions of para 8.1.(G) of U.P. Electricity Supply Code 2005 and in not doing so the respondents have acted without jurisdiction.

We have heard learned counsel for the petitioner and perused the record.

Although learned counsel for the petitioner has raised submissions on the merit stating that in the checking report, the report submitted with the police as well as meter checking report nothing adverse was found but the petitioner having statutory remedy of filing an appeal, we are not inclined to entertain such issues on merits. The order of the assessment is a detailed order. For appreciating the submissions of learned counsel for the petitioner, it shall be necessary for this Court to enter into facts which is not the stage at present.

In view of the aforesaid, we are of view that the petitioner may avail the statutory remedy as provided under section 127 of the Electricity Act, 2003.

Learned counsel for the petitioner submitted that the respondents have

permitted reconnection by accepting the deposit of lessor amount which fact has been disputed by learned counsel for the respondents. We are not required to issue any direction or express any opinion in above regard. We only observe that it shall be open for the petitioner to make similar request to the competent authority if any such action has been taken by the respondents. It shall also be open for the petitioner to make request for any other document or report which may be required for filing the appeal which shall be given by the respondents within one week.

With these observation, the writ petition is disposed of finally.

Order Date :- 23.8.2011

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